

Court No. - 2

Case :- WRIT - C No. - 4360 of 2023

Petitioner :- Neeraj Chandel

Respondent :- State Of U.P. Thru. Prin. Secy. Energy Civil Sectr. Lko.
And Others

Counsel for Petitioner :- O.P. Tiwari

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Rajan Roy,J.

Hon'ble Manish Kumar,J.

Heard.

The present writ petition has been preferred by the petitioner challenging the recovery citation dated 31.03.2023 issued by opposite party no.4 on behest of the electricity department.

Learned counsel for the petitioner has submitted that the recovery citation has been issued without passing the final assessment order and without providing any opportunity of hearing as per para no.6.8 of the Electricity Supply Code, 2005.

On the other hand, learned counsel representing respondent nos.2 & 3 has very fairly submitted that without passing the final assessment order, recovery citation has been issued.

A copy of the provisional assessment order has been provided to learned counsel for the petitioner today in Court. The petitioner is permitted to submit his reply against the provisional assessment order within a period of seven days. Thereafter, the authority may pass order of final assessment and proceed in accordance with law.

In view of the above, the recovery citation dated 31.03.2023 is hereby quashed. Liberty is given to respondent no.2 to pass a final assessment order in accordance with law after considering the objections of the petitioner and thereafter proceed against the petitioner if the occasion so arises.

With these observations/ direction, the writ petition is **disposed of**.

(Manish Kumar,J.) (Rajan Roy,J.)

Order Date :- 30.5.2023/Shanu/-